

BYLAWS OF CAPE GIRARDEAU HEMA

ARTICLE I — OFFICES

Section 1.1. The principal office of the Club shall be located in Cape Girardeau County, Missouri. Regular training is held at Dennis Scivally Park, Cape Girardeau, Missouri, or such other location as the Board designates.

Section 1.2. The Club shall maintain a registered agent and registered office in Missouri as required by law.

ARTICLE II — MEMBERSHIP

Section 2.1. Classes of Membership.

- **Full Member** — has completed the introductory period, holds current HEMA Alliance membership, has a signed waiver on file, and is current on dues. Full Members may vote.
- **Introductory Participant** — a new participant within their first eight (8) weeks. Must be registered with the HEMA Alliance under intro-class coverage in order to be insured. Non-voting.
- **Inactive Member** — a Full Member who has requested inactive status. Non-voting, no dues owed, no training privileges until reactivated.

Section 2.2. Admission. Any eligible person becomes an Introductory Participant upon signing a waiver and being registered for HEMA Alliance intro coverage. Introductory Participants become Full Members upon completing eight weeks, obtaining individual HEMA Alliance membership, and paying dues.

Section 2.3. Dues. Annual dues shall be set by the Board and reviewed each year. Dues shall be sufficient to cover the Club's HEMA Alliance affiliate fee, insurance, and shared equipment. The Board may reduce or waive dues for individual members experiencing financial hardship, at its discretion and without public disclosure.

Section 2.4. Good Standing. A member is in good standing when their waiver, HEMA Alliance membership, and dues are all current and they have a signed Code of Conduct agreement on file. Only members in good standing may train, vote, or hold office.

Section 2.5. Suspension and Removal. The Board may suspend or remove any member for: violation of the Safety Policy; conduct endangering others; harassment or abuse of members or guests; or conduct materially harmful to the Club. Removal requires a majority vote of the Board. Except in cases of immediate safety risk (where an officer may suspend a member on the spot), the member shall be given notice and an opportunity to respond before the vote.

Section 2.6. Resignation. Any member may resign by written notice to the Secretary. Dues already paid are not refundable except at Board discretion.

Section 2.7. Minor Members. Persons aged fourteen (14) through seventeen (17) may become members of the Club. Each minor member shall have a Responsible Adult — a parent, legal

guardian, or other adult designated in writing by the parent or legal guardian — identified at the time of admission. The Responsible Adult must be present for the entire duration of every practice and event the minor attends, and a minor may not participate in any Club activity without their Responsible Adult present. The minor's waiver shall be signed by a parent or legal guardian. Notwithstanding Section 2.1, minor members are non-voting, regardless of membership class. Minor members are not eligible to serve as directors or officers. A minor member may spar only with another minor member or with their own Responsible Adult. A Responsible Adult who spars with a minor must meet all participation requirements of these Bylaws, including a signed waiver on file, current HEMA Alliance coverage, and the protective equipment required under Section 6.7. All official Club communication regarding a minor member shall be sent to the Responsible Adult and not to the minor.

Section 2.8. Code of Conduct. Every member of the Club must agree in writing to the Club's Code of Conduct and act in accordance with it at all Club practices, events, and activities. The Code of Conduct shall be adopted and may be amended by the Board, and shall be made available to all members. Signed Code of Conduct agreements shall be retained by the Secretary with the member's waiver. Violation of the Code of Conduct may be grounds for suspension or removal under Section 2.5.

ARTICLE III — BOARD OF DIRECTORS

Section 3.1. Number. The Board shall consist of no fewer than three (3) and no more than seven (7) directors.

Section 3.2. Powers. All Club powers shall be exercised by or under the authority of the Board, and the affairs of the Club shall be managed under its direction.

Section 3.3. Election and Term. Directors shall be elected by a vote of Full Members in good standing at the annual meeting. Directors shall serve two-year terms and may be re-elected.

Section 3.4. Vacancies. A vacancy may be filled by majority vote of the remaining directors, and the appointee shall serve the remainder of the unexpired term.

Section 3.5. Resignation and Removal. A director may resign by written notice to the Board. A director may be removed, with or without cause, by a two-thirds (2/3) vote of Full Members in good standing.

Section 3.6. Compensation. Directors shall serve without compensation but may be reimbursed for reasonable, documented expenses approved in advance by the Board.

Section 3.7. Conflict of Interest. Any director with a financial or personal interest in a proposed transaction shall disclose it and abstain from voting on that matter. The disclosure and abstention shall be recorded in the minutes.

ARTICLE IV — MEETINGS

Section 4.1. Annual Meeting. An annual meeting of the membership shall be held each year for the election of directors and review of Club finances. Notice shall be given at least fourteen (14) days in advance.

Section 4.2. Regular Board Meetings. The Board shall meet at least quarterly.

Section 4.3. Special Meetings. Special meetings may be called by the President or by any two directors, with at least seven (7) days' notice stating the purpose.

Section 4.4. Quorum. A majority of directors in office constitutes a quorum for Board meetings. In no case shall a quorum be fewer than one-third of the directors in office or two directors, whichever is greater.

Section 4.5. Voting. Each director present is entitled to one vote. Action is taken by majority vote of directors present at a meeting at which a quorum exists, unless a greater vote is required by these Bylaws or the Constitution.

Section 4.6. Remote Participation. Directors may participate by telephone or video conference, provided all participants can hear one another. Such participation constitutes presence in person.

Section 4.7. Action Without a Meeting. Any action required to be taken at a Board meeting may be taken without a meeting if all directors consent in writing (including email).

Section 4.8. Minutes. The Secretary shall keep minutes of all Board and membership meetings.

ARTICLE V — OFFICERS

Section 5.1. Officers. The officers shall be a President, a Secretary, and a Treasurer. The Board may create additional offices (such as Vice President, Safety Officer, or Lead Instructor) as needed.

Section 5.2. Dual Roles. One person may hold more than one office, except that the President and Secretary may not be the same person.

Section 5.3. Election and Term. Officers shall be elected by the Board and serve one-year terms, renewable without limit.

Section 5.4. Duties.

- **President** — presides at meetings, serves as principal spokesperson, and oversees general operations.
- **Secretary** — maintains minutes, membership rolls, signed waivers, and HEMA Alliance membership status records.
- **Treasurer** — maintains financial records, collects dues, pays obligations, and reports the Club's financial position at each Board meeting and at the annual meeting.
- **Safety Officer** (if created) — ensures compliance with the HEMA Alliance Safety Policy, inspects equipment, and has standing authority to halt any activity for safety reasons.

Section 5.5. Removal. Any officer may be removed by majority vote of the Board.

ARTICLE VI — SAFETY AND TRAINING OPERATIONS

Section 6.1. Safety Policy. The Club shall comply with the HEMA Alliance Safety Policy at all practices and events. The Club may impose stricter requirements but shall never reduce them.

Section 6.2. HEMA Alliance Member Present. At least one current HEMA Alliance individual

member must be present at every Club activity.

Section 6.3. Activity Registration. All practices and events shall be registered in advance on the HEMA Alliance activities registry so that they are covered by insurance.

Section 6.4. Waivers Required. No person may participate without a signed waiver on file. Waivers shall be retained by the Secretary.

Section 6.5. Halt Signal. Any participant, spectator, or organizer may halt any activity at any time by calling “Hold!” or “Halt!” No explanation is required, and no penalty shall attach to calling a halt.

Section 6.6. Progressive Training. New participants shall complete solo footwork, guard, and cutting fundamentals before partnered contact drilling, and shall complete controlled partnered drilling before free sparring. The Lead Instructor or Safety Officer determines readiness.

Section 6.7. Protective Equipment. Minimum required equipment shall be set by the Board consistent with the HEMA Alliance Safety Policy and shall be published to members. No participant may spar without the required equipment for that activity.

Section 6.8. Health Insurance. Members are responsible for maintaining primary health insurance. The Club’s HEMA Alliance secondary medical coverage applies only after primary insurance, and only for approved claims.

ARTICLE VII — FINANCES

Section 7.1. Fiscal Year. The fiscal year shall run from January 1 to December 31.

Section 7.2. Accounts. Club funds shall be held in an account in the Club’s name under its EIN. No Club funds shall be held in a personal account.

Section 7.3. Authorization. Expenditures over an amount set by the Board require prior Board approval. Two signatures or two-person approval shall be required for expenditures above that threshold.

Section 7.4. Records. The Treasurer shall maintain records of all income and expenses, available for inspection by any member in good standing upon reasonable request.

Section 7.5. No Private Benefit. No part of the Club’s net earnings shall inure to the benefit of any member, director, or officer.

ARTICLE VIII — INDEMNIFICATION AND INSURANCE

Section 8.1. Indemnification. To the fullest extent permitted by Missouri law, the Club shall indemnify any director or officer made party to a proceeding by reason of their service to the Club, provided they acted in good faith and in a manner reasonably believed to be in the Club’s best interest.

Section 8.2. Insurance. The Club shall maintain liability coverage through its HEMA Alliance affiliation or an equivalent policy. The Board should consider Directors and Officers (D&O) coverage as the Club grows.

ARTICLE IX — AMENDMENTS

These Bylaws may be amended by a two-thirds (2/3) vote of the Board, provided written notice of the proposed change is given to all directors at least fourteen (14) days in advance. No amendment may conflict with the Constitution, Missouri law, or the requirements of HEMA Alliance affiliation.

ARTICLE X — PARLIAMENTARY AUTHORITY

Except where inconsistent with these Bylaws, the Constitution, or Missouri law, meetings shall be governed by the most recent edition of *Robert's Rules of Order*.

Adopted this ____ day of _____, 20__.

President

Secretary